

HOUSE No. 4046

The Commonwealth of Massachusetts

PRESENTED BY:

Adrienne Pusateri Ramos

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to establishing a special commission to study alimony.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Adrienne Pusateri Ramos</i>	<i>14th Essex</i>	<i>1/17/2025</i>

HOUSE No. 4046

By Representative Ramos of North Andover, a petition (accompanied by bill, House, No. 4046) of Adrienne Pusateri Ramos for an investigation by a special commission (including members of the General Court) relative to the alimony system. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to establishing a special commission to study alimony.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to establish a special commission to study the alimony system in the commonwealth, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 (a) There shall be established, pursuant to section 2A of chapter 4 of the General Laws, a
2 special commission to study alimony and recommend any improvements to the alimony system
3 in the commonwealth.

4 (b) The special commission shall be comprised of the following members: the chairs of
5 the joint committee on the judiciary, who shall serve as co-chairs; 1 member appointed by the
6 speaker of the house of representatives; 1 member appointed by the minority leader of the house
7 of representatives; 1 member appointed by the president of the senate; 1 member appointed by
8 the minority leader of the senate; 1 member appointed by the chief justice of the probate and
9 family court; 1 member appointed by the Massachusetts Bar Association, who shall have

10 expertise in family law and alimony; and 1 member appointed by the Massachusetts Legal
11 Assistance Corporation, who shall have expertise in family law and alimony.

12 (c) The study shall include, but not be limited to: (i) statewide trends in alimony awards
13 over time, including determining what percentage of alimony awards constitutes each time of
14 alimony and how often courts grant requests for modifications of alimony; (ii) a review of the
15 formula used for determining alimony in the commonwealth, including a tax analysis of the
16 current formula; (iii) analysis on the economic implications of alimony on families in the
17 commonwealth; (iv) comparison of Massachusetts alimony laws with alimony laws in other
18 states, including trends pertaining to alimony; (v) analysis of the interplay between alimony and
19 child support; (vi) court enforcement of alimony, particularly with regard to whether and how
20 enforcement differs from enforcement of child support; (vii) the uniformity of the application of
21 alimony laws among counties in the commonwealth; and (viii) any recommendations on changes
22 to the alimony system in the commonwealth.

23 (d) The commission shall prepare a report detailing the results of the study, along with
24 any recommendations and any proposed standards and legislation necessary to carry out its
25 recommendations. The report shall be submitted to the: (i) joint committee on the judiciary; and
26 (ii) clerks of the house of representatives and senate not later than December 31, 2026.